

RE: Your Employment Law Matter

From: Paul Conrad Paul@saineslegal.com.au

To: Cory Shepherd coryshepherd1@hotmail.com

Cc: Nigel Saines nigel@saineslegal.com.au,

Georgette Di Trapani

Georgette@saineslegal.com.au

Sent: Thursday 13 February 2025 at 17:16

Dear Mr Shepherd

Thank you for your email.

Period of Payment

The Respondent's most recent offer was to pay your wages up until 13 December 2024 and that you would be on unpaid leave between that date and whenever you recommence work.

Their rationale for this is that after 13 December 2024, the protracted negotiations delayed the settlement of the matter.

WorkCover and Personal Injury Claim

The Workers' Compensation legislation prevents individuals from contracting away their right to bring a statutory WorkCover claim. Nevertheless, we have amended the deed to clarify that you are not waiving your right to bring a statutory WorkCover claim and to reserve your right to bring common law claim personal injury claim about the dismissal.

We do not practice in the area of personal injury law, so we are unable to advise as to whether you do or do not have a common law personal injury claim arising from the dismissal.

We recommend that you speak to Mr Peter Bandarian at Littles Lawyers, who is a specialist personal injury practitioner. He can be contacted at: pbandarian@littles.co.

Progressing Negotiations

If you are otherwise satisfied with the amended deed, please confirm your instructions by reply email and we will send it to the Respondent for their consideration.

Moving Forward

If you wish to discuss this matter, please do not hesitate to contact our office.

Kind Regards

Paul Conrad

Lawyer



Level 20/324 Queen Street, Brisbane Q 4000 | Postal Address GPO

BOX 929 Brisbane Q 4001

Phone **07 3324 1055** www.saineslegal.com.au



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From: Cory Shepherd <coryshepherd1@hotmail.com>
Sent: Thursday, 13 February 2025 4:44 PM
To: Paul Conrad <Paul@saineslegal.com.au>
Cc: Nigel Saines <nigel@saineslegal.com.au>; Georgette Di Trapani <Georgette@saineslegal.com.au>
Subject: Re: Your Employment Law Matter

Hi Paul,

If you believe this is the most suitable course of action for me, I will adhere to your guidance.

Additionally, due to the amendments made to the deed, would the effective date change or would the health service be willing to cover expenses until the current date or is the 13th of December the date of which they intend to finalise the deed, and I continue without pay until today's date?

Lastly, does this imply that releasing them from any claims would prevent me from continuing the appeal process for workers' compensation?

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From: Paul Conrad <Paul@saineslegal.com.au>
Sent: Thursday, February 13, 2025 3:57:08 PM
To: Cory Shepherd <coryshepherd1@hotmail.com>
Cc: Nigel Saines <nigel@saineslegal.com.au>; Georgette Di Trapani <Georgette@saineslegal.com.au>
Subject: RE: Your Employment Law Matter

Dear Mr Shepherd

We refer to the above matter.

Draft Deed of Settlement

Please find **attached** an amended draft deed of settlement for you to review, with our changes tracked.

In summary, the purpose of this Deed is to:

1. Ensure that you retain any legal rights you may have if the Health Service takes disciplinary action against you in the future.
2. Provide that the recredited leave will be deducted from the settlement sum, to avoid you having to make a payment to the Health Service.

We also propose to contact the Health Service to see if they can provide an indication of the leave amounts being recredited.

If it is convenient for you, we will contact you by telephone to discuss these suggested changes.

Moving Forward

If you wish to discuss this matter, please do not hesitate to contact our office.

Kind Regards

Paul Conrad

Lawyer

SAINES
LEGAL

THE NAME IN EMPLOYMENT LAW

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From: Paul Conrad
Sent: Wednesday, 12 February 2025 5:17 PM
To: Cory Shepherd <coryshepherd1@hotmail.com>
Cc: Nigel Saines <nigel@saineslegal.com.au>; Georgette Di Trapani <Georgette@saineslegal.com.au>
Subject: RE: Your Employment Law Matter

Dear Mr Shepherd

Thank you for your email and for sending through these proposed changes.

Amendment to Limit Management Action

We understand your concerns regarding clause 6 of the proposed Deed of Release.

Unfortunately, Metro South Hospital and Health Service (**MSHHS**) reiterated in our call today that they will not

agree to waive their right to deal with the matters which they describe as “*absenteeism and communication with the Health Service regarding [your] absences*”. This is the position they outlined in the correspondence of 13 December 2024 and 28 January 2025 (**attached** for your reference).

We do not think that there is utility in our office proposing these amendments to clause 6 or the proposed “non-reprisal” clause.

Other Proposed Amendments

MSHHS indicated they would be open to an amendment which made clear that you are not waiving any legal rights or claims which may arise if MSHHS takes disciplinary action against you.

Our office could also request that MSHHS provide an estimate of the amount of money you would have to pay back from the clawing back of leave.

We ask that you confirm whether you would be willing to accept a settlement offer with an amendment and clarification on these lines.

Moving Forward

If you wish to discuss this matter, please do not hesitate to contact our office.

Kind Regards

Paul Conrad

Lawyer

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From: Cory Shepherd <coryshepherd1@hotmail.com>
Sent: Wednesday, 12 February 2025 3:28 PM
To: Paul Conrad <Paul@saineslegal.com.au>
Cc: Nigel Saines <nigel@saineslegal.com.au>; Georgette Di Trapani <Georgette@saineslegal.com.au>
Subject: Re: Your Employment Law Matter

Hi Paul,

Apologies for the mix-up. I have attached the completed, signed, and sealed Form 9 and 12 from the Commission in my previous email.

I have some concerns regarding the Deed of Release. While I understand the concept of releasing all claims against QLD Health in exchange for reinstatement, the

broad terms reserving QLD Health's right to address absenteeism and "outstanding matters" are concerning. I have never received a written warning during my over 5 years of employment with QLD Health, which makes this even more troubling.

It's concerning that QLD Health refuses to specify what these "outstanding matters" are or how they intend to address them. This is especially worrying given their insistence on a financial settlement offer, despite their discriminatory actions that have caused me significant hardship, including relationship breakdowns, the need for further counseling, and financial strain.

To address these concerns, I propose the following additions to the Deed of Release:

Clause 6 (Revised):

The Health Service reserves the right to deal with any outstanding matters of the Applicant's behaviour, conduct, and communication with the Health Service.

For the avoidance of doubt, "outstanding matters" do not include any of the following:

Absenteeism occurring prior to the date of this Deed that was related to medical leave for which the Applicant provided the required medical certificates to the Health Service.

Any action taken by the Applicant to exercise their workplace rights, including but not limited to raising concerns about workplace conditions, making complaints, or participating in workplace investigations.

New Clause (Non-Reprisal):

The Health Service shall not take any retaliatory action against the Applicant for raising concerns about their dismissal, asserting their workplace rights, or for taking medical leave in the future, provided that such medical leave is supported by appropriate medical documentation.

Further Clarification:

To ensure clarity, I want to confirm that, upon reinstatement, I retain all rights and entitlements as a QLD Health employee, including:

Exercising workplace rights: raising concerns, making complaints, and participating in investigations without fear of reprisal.

Addressing unpaid wages or entitlements: any outstanding entitlements or payments related to my previous employment period.

If Queensland Health clarifies the leave entitlements they wish to recover, including lost income and superannuation, and amends the deed terms, we can proceed with the agreement, and I will sign the deed.

Additionally, please include me in all correspondence related to the reinstatement process and the appeal, so I can stay updated on the progress.

Kind regards,

Cory Shepherd

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From: Cory Shepherd <coryshepherd1@hotmail.com>
Sent: Wednesday, February 12, 2025 1:43:37 PM
To: Paul Conrad <Paul@saineslegal.com.au>
Cc: Nigel Saines <nigel@saineslegal.com.au>; Georgette Di Trapani <Georgette@saineslegal.com.au>
Subject: Re: Your Employment Law Matter

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From: Paul Conrad <Paul@saineslegal.com.au>
Sent: Wednesday, February 12, 2025 1:13 pm
To: coryshepherd1@hotmail.com

<coryshepherd1@hotmail.com>

Cc: Nigel Saines <nigel@saineslegal.com.au>;

Georgette Di Trapani

<Georgette@saineslegal.com.au>

Subject: Your Employment Law Matter

Dear Mr Shepherd

We refer to the above matter.

Our office has informed the QIRC that we now act for you in the reinstatement matter.

Upon review of our records, our office has the **attached** version of the Form 12 application. This version does not appear to have been sealed by the Commission and does not contain any attachments.

Could you please provide us with the compiled version of the Form 12 which was filed with the Commission?

If you wish to discuss this matter, please do not hesitate to contact our office.

Kind Regards

Paul Conrad

Lawyer

Level 20/324 Queen Street, Brisbane Q 4000 | Postal Address GPO

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